DEPARTMENT OF HEALTH &. HUMAN SERVICES

Public Health Service

Indian Health Service
Phoenix Indian Medical Center
4212 North 16th Street
Phoenix, Arizona 85016

MEMORANDUM FOR RECORD

DATE: June 10, 2025
FROM: Kevin D. Turnage, MSN Ed., RN, AMB-BC, NHDP-BC, NE-BC, NPD-BC
Policy and Procedure Nurse Consultant – PX3147
RE: Documentation of Directive Conflict with Federal Compliance Requirements

This Memorandum for Record (MFR) is entered to document a compliance conflict arising from a directive issued by Clinton Pope, Chief Quality Officer, on **June 10, 2025**, instructing staff **not to update policy expiration dates in PolicyStat**. The instruction was delivered verbally and/or via internal communication as part of a standing policy update management change.

Upon review of applicable federal law, Indian Health Manual (IHM) provisions, and compliance program guidance, the directive is in **direct violation** of multiple binding standards, including but not limited to:

1. Transmittal Notice 24-16 (2024) – IHM Part 1, Chapter 1 Update

"All directives… must be reviewed at a minimum of every 2 years to ensure they remain current and accurate."

Policies that expire must not remain active unless reapproved. The directive to suspend expiration updates contradicts this federally transmitted requirement.

2. IHM Part 1, Chapter 1 – Internal Controls

"IHS officials must establish, maintain, and periodically review a system of internal management controls… including mechanisms for developing, reviewing, approving, and monitoring policies…"

The PX3147 role was designated to carry out this review and control function. Instructing staff to disregard expiration tracking disables this internal control process.

3. CMS Conditions of Participation – 42 C.F.R. § 482.12 & § 482.21

Hospitals must maintain effective structures for oversight of policy and quality assurance to ensure regulatory compliance.

Failure to track and update the expiration and approval status of policies jeopardizes institutional compliance with these Conditions of Participation.

4. Federal Records Act – 44 U.S.C. §§ 3101–3107

Knowingly concealing or failing to reflect current policy status may constitute a **failure to maintain accurate federal records**. Misrepresenting the current status of policies in audits, surveys, or public records may invoke liability.

5. HHS OIG General Compliance Program Guidance (2023)

"The entity should establish a policy management process that ensures policies are regularly reviewed, maintained, and comply with legal and programmatic standards."

Suspending expiration updates without proper legal or compliance review contradicts this directive.

6. Federal Managers' Financial Integrity Act (31 U.S.C. § 3512)

Federal agencies must maintain internal administrative controls that provide reasonable assurance of compliance. The PX3147 role is a legally designated control point. Circumventing this oversight risks systemic failure under FMFIA criteria.

Conclusion

This memorandum is intended to formally record a material deviation from required compliance procedures. As required by law, internal agency policy, and HHS OIG guidance, I am entering this documentation into record. A copy may be provided to agency compliance, legal, or audit authorities upon request or as part of any future administrative or legal review.

Filed By:

Kevin D. Turnage -S

Digitally signed by Kevin D. Turnage -S
Date: 2025.06.10 15:01:41 -07'00'

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